



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street S.W.
Washington D.C. 20590

DOT-E 4612 (EXTENSION)
THIRD REVISION July 19, 1984
CORRECTED COPY

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 4612 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to June 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 24 1994

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

EM Science
Cincinnati, OH

June 1, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



U.S. Department
of Transportation

Research and
Special Programs
Administration

JUL 19 1984

400 Seventh Street S.W.
Washington, D.C. 20590

DOT-E 4612
(THIRD REVISION)
(Corrected Copy)

1. EM Science, Division of EM Industries, Inc., Cincinnati, Ohio, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of small quantities of hazardous materials in inside glass bottles overpacked in metal cans further overpacked in 12B fiberboard box, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Aldrich Chemical Co., Inc., Milwaukee, Wisconsin - PTE-1.

2. BASIS. This exemption is based on EM Science's application dated March 26, 1984 submitted in accordance with 49 CFR 107.105 and the public proceeding thereon and letter of May 11, 1984. The granting of party status is based on the following applications submitted in accordance with 49 CFR 107.111 and 107.105 and the public proceeding thereon.

Aldrich Chemical Co., Incorporated's application dated March 6, 1984.

3. HAZARDOUS MATERIALS (Descriptor and class). Various flammable liquids, flammable solids, poisonous liquids, corrosive liquids, corrosive solids, oxidizing materials, irritating agents, and any other hazardous material specifically identified to, and acknowledged in writing by, the Office of Hazardous Materials Regulation (OHMR) prior to the first shipment.

4. PROPER SHIPPING NAME (49 CFR 172.101). By the specific commodity description, or Flammable liquids, n.o.s.; Flammable solids, n.o.s.; Poison B, liquids n.o.s.; Corrosive liquids, n.o.s.; Corrosive solids, n.o.s.; Oxidizer or Oxidizing materials, n.o.s.; or Irritating agents, n.o.s. as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.122, 173.135, 173.136, 173.139, 173.154, 173.206, 173.230, 173.245, 173.247, 173.252, 173.253, 173.271, 173.276, 173.281, 173.293, 173.346, and 173.382.

6. MODE OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is inside glass bottles not exceeding 2.2 pounds net weight of material, overpacked in metal cans whose side seams are coated with a vinyl lacquer or welded, of the key-opening type, with each bottle surrounded by material capable of absorbing the entire contents. Further overpacking in a DOT Specification 12B fiberboard box is required with a maximum of 4 cans authorized in one DOT Specification 12B fiberboard box.

Only one type of chemical may be packaged in any outside packaging.

8. SPECIAL PROVISIONS. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMR as soon as practicable.

10. EXPIRATION DATE. April 15, 1986.

Issued at Washington, D.C.:



Alan L. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

JUL 19 1984

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation,
Materials Transportation Bureau, Research and Special Programs Administration, U.
S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FHWA.